IN THE DISTRICT COURT SITTING AT WAMFIE ON THE 25TH DAY OF MARCH,2025 BEFORE HIS WORSHIP EUGENE OBENG-NTIM,ESQ.

SUIT NO.:BR/WF/DC/A2/02/2025

MAVIS ACHIAA DWOMOH ------ **PLAINTIFF**
Wamanafo

VRS

ISAIAH APPIAH ------ **DEFENDANT**
Akomadan Afrancho

JUDGMENT

Introduction

The plaintiff, Mavis Achiaa Dwomoh, filed a writ seeking the following reliefs:

a) Recovery of cash the sum of Eleven Thousand Ghana Cedis **(GH¢ 11,000.00)** being the outstanding balance of money giving to the defendant to finance his farming activities in February, 2023.

b) Interest on relief (a) from February 2023 till date of final payment.

c) Cost as well as legal fees.

Defendant pleaded not liable on the 31st October, 2024 and the court ordered parties to file their witness statements within three weeks which order was duly complied.

The court proceeded to conduct Case Management Conference (CMC) on 3rd December, 2024 and set hearing on 30th January, 2025.

Plaintiff adopted her witness statement filed on the 20th November, 2024 as her evidence in chief. She also tendered a purported document authorising the deduction of plaintiff's salary which was accepted and was marked **Exhibit "A".**

The evidence of the plaintiff, per her witness statement, is that she met defendant, who is a class mate, at Afrancho in 2020. Defendant informed her he was into the farming of pepper but had difficulties and since she was also into pepper business, defendant suggested to plaintiff release money for the purchase of pepper in return for commission. Defendant further told plaintiff to secure a loan to cultivate pepper and reimburse her after the close of season which she agreed and secured a loan of Ten Thousand Ghana Cedis (GH¢ 10,000) from the Ghana Commercial bank in February, 2023. Defendant further demanded another Nine Thousand Ghana Cedis (GH¢ 9,000) in the year 2023 which was delivered to him via mobile money. Defendant again demanded for money but she was unable to deliver. At the close of the season, she demanded for the money but Defendant refused to pay. She reported defendant to his uncle where defendant admitted owing her Nineteen Thousand Ghana Cedis (GH¢ 19,000), out of which he paid Eight Thousand Ghana Cedis (GH¢ 8,000) and has failed to pay the balance despite repeated demands.

Plaintiff did not call any witness but tendered a purported document dated 13th February, 2023, authorising the deduction of her salary by the Controller & Accountant-General Department which was accepted and was marked **Exhibit "A".**

The evidence of defendant, per his witness statement, is that he met plaintiff who is a class mate and also buys pepper from his brother at Akumadan Afrancho in August 2022. Plaintiff asked why he was not cultivating pepper and he replied that he did not have the capital. Plaintiff suggested that they grow pepper during the next season and share the profit after harvest. They subsequently became lovers and started a relationship aiming to get married in future. In the 2023 pepper season she sent GH¢ 3,000.00 to defendant to buy pumping machine for the pepper farming and further GH¢ 19,000.00 which he invested in the pepper farm. According to defendant, the farm was attacked by some diseases and as a result could not bear fruits as expected. He therefore called plaintiff to visit the farm to see it but she failed and he therefore took pictures and sent them to her as evidence. Plaintiff reported the matter to his uncle where he explained the entire story to him. Defendant harvested the pepper and handed over GH¢ 8,000 from the proceeds to his uncle to be given to the plaintiff. Defendant denied ordering plaintiff to secure a loan from any financial institution neither did she lend him money as she alleged. She started demanding the money after the relationship broke down.

Defendant did not call any witness or tender document in support of his evidence.

Based on the evidence, the following are the issues for determination:

i. Whether or not there existed a relationship between the parties.

ii. Whether or not there was a joint venture between the parties to cultivate pepper and share profit accrued.

iii. Whether or not plaintiff is entitled to recover cash the sum of Eleven Thousand Ghana Cedis (GH¢ 11,000.00) being the outstanding balance of money giving to defendant to finance his farming activities in February, 2023.

Applicable laws and cases.

Section 11(1) and (4) of the Evidence Act 1975 (NRCD 323) also provides as follows:

'(1) for the purposes of this Act, the burden of producing evidence means the obligation of a party to introduce sufficient evidence to avoid ruling on the issue against that party.

(4) *In the other circumstances the burden of producing evidence requires a party to produce sufficient evidence so that all the evidence a reasonable mind could conclude that the existence of the fact was more probable that its non-existence'*

Further, section 14 of the Evidence Act, 1975 (NRCD 323) states as follows: *Except as otherwise provided by law, unless and until it is shifted a party has the burden of persuasion as to each fact the existence or non-existence of which is essential to the claim or defence he is ascertain.*

Proof in civil proceedings is established by the principle of the preponderance of probabilities or balance of probabilities. Section 12(2) provides that except as otherwise provided by law the burden of persuasion requires proof by preponderance of probabilities.

This position is supported by the Supreme Court in **Adwubeng v Domfeh [1997-98] 1 GLR 282** where it was held at page 295 that:

sections 11(4) and 12 of NRCD 323 clearly provide that the standard of proof in all civil actions is proof by a preponderance of probabilities-no exceptions are made. Similarly, the Supreme Court in the case of **Odonkor and others v Amartei GBR 1993-94 VOL 1** held that *the Evidence Decree 1975 (NRCD 323) sections 11(4) and 12 provided that in all civil cases judgment might be given in favour of a party on the preponderance of probabilities.*

What is required by the court is to evaluate the evidence of the parties and draw a conclusion that, on the preponderance or balance of probabilities, the court is inclined to accept the evidence of one party relative to that of the other.

Evaluation of evidence and application of law

The evidence of plaintiff that she advanced the sum of GH¢ 19,000.00 to defendant for the cultivation of pepper was not disputed. What is in dispute is whether it was a financial assistance to defendant with the intent that it would be refunded or it was plaintiff's contribution towards a joint venture for which profit accruing therefrom would be shared. According to plaintiff she secured a loan of Ten Thousand Ghana Cedis (GH¢ 10,000) from the Ghana Commercial Bank in February, 2023 and subsequently sent Nine Thousand Ghana Cedis (GH¢ 9,000) in the year 2023. She tendered **Exhibit "A"** in support of her claim that she secured a loan. A careful examination of the exhibit reveal that the document dated 13th February, 2023, is an authority note authorising the deduction of money from her salary by the Controller & Accountant-General Department. The document does not confirm that she secured a loan of Ten Thousand Ghana Cedis (GH¢ 10,000) from the Ghana Commercial Bank.

Nevertheless, since defendant admits receipt of Nineteen Thousand Ghana Cedis (GH¢ 19,000) from plaintiff, the court would accepted that the GH¢ 19,000 sent by plaintiff to defendant, included the GH¢ 10,000 loan secured from the Ghana Commercial Bank.

As I have stated earlier, the defendant does not deny receipt of GH¢ 19,000 from plaintiff. His contention is that parties were in a relationship with the intention of marriage in future and that the GH¢ 19,000 was sent by plaintiff to grow pepper during the next season and share the profit after harvest. The crop failed because of an attack by some diseases and he brought it to the attention of plaintiff.

The evidence of defendant that he was in a relationship with plaintiff aimed at marriage in future, was not challenged by plaintiff. Indeed, he maintained it under cross examination by counsel for plaintiff.

Ques: You agree with me that plaintiff gave you a total amount of GH¢ 19,000 to cultivate pepper. Is that not so?
Ans: That is not so. When we started the farming there was no agreement. We were in a relationship. We were engaged in joint enterprise. You said the profit shall be shared and that was why I was telling you to visit the farm.

Furthermore, the sworn affidavit of plaintiff filed on 7th October, 2024 in support of her claim for the suit to be placed on the **undefended list**, supports the evidence of the defendant that parties were in a relationship. Paragraph 3 states *"that I was in a relationship with the defendant and went for a loan of GH¢ 19,000 and gave it to the defendant to support his farming activities"*.

The evidence of defendant that parties cultivated pepper and the profit to be shared after harvest is supported by cross examination. This is what transpired when defendant cross examined plaintiff:

Ques: Do you recall I told you the pepper farm was failing and since we both cultivated it, you needed to come and see?
Ans: I remember. You called me when it was failing but because of my work, I could not visit.

The following transpired when counsel for the plaintiff cross examined defendant:

Ques: is it correct that the said amount which plaintiff gave you was solely for business purposes.
Ans: Yes.

Ques: you agree with me that you paid an amount of GH¢ 8,000 to your uncle Stephen Takyi to be given to plaintiff after she had reported your intention not to pay the GH¢ 19,000?
Ans: I paid GH¢8,000. I did not say I could not pay, I told plaintiff the farm had failed. I told her to wait and she informed my uncle. When I harvested some I gave the GH¢ 8,000 to my uncle who added that I should add GH¢ 2,000 to it but I replied that I did not have such money.

Ques: You agree with me that the said balance which is GH¢ 11,000 is what was stated in plaintiff's claim.
Ans: Yes
Ques: By giving you that amount, plaintiff became part of any business that you invested in, is that no so?

Ans: Yes. I suggested she secures that loan and she sponsored and I assisted.

The evidence of defendant that the failing of the crops was brought to the attention of plaintiff is supported by his questions when he cross examined the plaintiff:

Ques: Do you recall I was sending you pictures of the pepper farm?
Ans: Yes. But I also called a worker of yours who said the farm was failing but because of the use of certain chemicals, it was recovering.
Ques: do you recall you told me that due to the stage of your pregnancy, you would not be able to come but you later came to buy pepper.
Ans: I remember I could not visit. I have already stated it.

From the evidence and cross examination, the following facts are settled: First that the parties were in a relationship with the intention of marriage and that plaintiff started demanding the GH¢ 19,000 after the relationship broke down. Second, that the parties were engaged in a joint venture for which proceeds accrued would be shared. Third that the crop failure was brought to the attention of plaintiff who had independent confirmation from a worker on the farm.

It is not the case that plaintiff advanced the sum of GH¢ 19,000 to an independence person as financial assistance with the understanding that same would be fully recovered. The evidence rather shows that parties were in a relationship. Plaintiff has received the sum of GH¢ 8,000 from the defendant as refund. It must be noted that defendant expended labour and his time in cultivating the farm.

Therefore, unless plaintiff was able to establish that she was entitled to more that the GH¢ 8,000 received, which she failed to do, the court is of the view that based on the crop failure and defendant contributing his labour and time to cultivate the farm, the sum of GH¢ 8,000 received by plaintiff appears reasonable.

The court, after the evaluation of the evidence of the parties and per section12 of the Evidence Act, 1975, NRCD 323 and the case of **Adwubeng v Domfeh** on the preponderance or balance of probabilities, is inclined to accept the evidence of defendant relative to that of plaintiff.

Reliefs being sought:

The plaintiff's claims as endorsed on her Writ of Summon namely:

i. to recover the sum of Eleven Thousand Ghana Cedis (GH¢ 11,000.00);
ii. interest on the amount from February 2023 till date of final payment;
iii. cost as well as legal fees

shall be dismissed and are hereby dismissed.

Cost

In view of the previous relationship of the parties and that they were engaged in a joint venture and the losses were occasioned due to the crop failure, parties are to bear their cost of this action.

Plaintiff's claims are dismissed.
There is no order as to cost.

Eugene Obeng-Ntim
(District Magistrate)